

Thus, based on the record it appears counsel's attempt at informal resolution was insufficient and the meet and confer letter was not a serious attempt to obtain an informal resolution of each issue. Therefore, Defendant's request for sanctions is denied. The Court further denies a request for sanctions by Plaintiff in that Plaintiff was not successful in opposing the instant motion, and Plaintiff's counsel's efforts at resolution were made after the deposition was taking place. The Court does order each party will bear their own expenses in relation to the continued deposition.

4. CU0001912 Old Republic Insurance Company et al vs. United Parcel Service, Inc. et al

Appearance required by Plaintiffs Old Republic and USF Reddaway to show cause as to why sanctions in the amount of \$1,000.00 jointly and severally should not issue against these plaintiffs. The Court is in receipt of the Declarations of S. Henslee Smith and Julian C. Sonnega Re: Order to Show Cause Hearing. The Court does not find said declarations reasonably absolve Plaintiffs from appearance at the MSC based on Plaintiffs' counsels' clear understanding the entire case was not settled. The Court notes an OSC did not issue to Plaintiff Gary Oliver, yet one should have in that Mr. Oliver failed to appear at the MSC as well forcing the Court to vacate trial dates. Thus, an OSC shall issue as to this plaintiff as to why sanctions in the amount of \$1,000.00 should not issue for the failure to appear forcing the vacating of a jury trial. Consolidated cases become a single case. Once consolidated, there no longer remains two separate cases. As such, each case no longer existed after consolidation as a separate case. Counsel were all aware of this as set forth in the stipulation to consolidate filed with the Court on June 5, 2025. Further, a notice of settlement of the entire case is just that – settlement of the entire case – all parties and all causes of action.

The Court is inclined to issue sanctions in the amount of \$1,000.00 as to Plaintiffs Old Republic and USF Reddaway jointly and severally due to the non-appearance at the MSC, failure to properly notice settlement and dismiss certain parties prior to MSC and trial if such was the intent, failure to show sufficient cause as to why sanctions should not issue and failure to correct these issues despite noticed OSC and the passage of approximately two (2) entire months since the OSC was noticed.

5. CU0002399 Linda Rodriguez vs. Lake of the Pines Association, a California non-profit mutual benefit Corporation et al

Defendants' Demurrer to Plaintiff's Complaint is overruled in part, sustained with leave to amend in part, and sustained without leave to amend in part. Plaintiff shall file and serve her amended complaint within ten (10) days of service of the notice of entry of this order.

Request for Judicial Notice

Defendants' unopposed request for judicial notice is granted.

In addition, on the Court's own motion, the Court takes judicial notice of Plaintiff's Claim and Order to Go to Small Claims Court filed on October 11, 2024 in Nevada County Superior Court Case No. SC0000484.